

25VECV06958 25VECV06958

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-21

Motion: DEFENDANTS' DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

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Case Number: 25VECV06958 Hearing Date: July 21, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

SMBAT TOROSIAN,

Plaintiff,

vs.

LARRY R.

GREENBERG, LARRY R. GREENBERG TRUSTEE OF THE LARRY R. GREENBERG REVOCABLE TRUST U/T/A NOVEMBER 7, 2000; and DOES 1 through 25, inclusive,

Defendants.

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CASE

NO: 25VECV06958

[TENTATIVE]

ORDER RE: DEFENDANTS' DEMURRER TO PLAINTIFF'S
SECOND AMENDED COMPLAINT

Dept.

B

DATE:

July 21, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: DECEMBER 8, 2025

TRIAL

DATE: NONE

I.

BACKGROUND

This

action arises from a contract to purchase property located in North Hills, CA. On December 8, 2025, Smbat Torosian ("Plaintiff") filed a complaint against Larry R. Greenberg ("Greenberg"), Larry R. Greenberg as Trustee of the Larry R. Greenberg Revocable Trust u/t/a November 7, 2000 (the "Trust")(collectively "Defendants"), and Does 1 to 25 alleging three causes of action: (1) breach of contract; (2) negligent misrepresentation; and (3) breach of fiduciary duty.

On

February 3, 2026, Plaintiff filed a first amended complaint ("FAC") alleging five causes of action: (1) breach of contract; (2) intentional misrepresentation; (3) negligent misrepresentation; (4) breach of fiduciary duty; and (5) intentional infliction of emotional distress.

On

May 13, 2026, Plaintiff filed a second amended complaint ("SAC") alleging three causes of action: (1) breach of contract; (2) intentional misrepresentation; and (3) negligent misrepresentation.

On

May 21, 2026, Defendants filed the instant demurrer.

On

July 8, 2026, Plaintiff filed an opposition.

On

July 14, 2026, Defendants filed a reply.

II.

LEGAL

STANDARD

A

demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There

are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General

demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) For the purpose of testing the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (*Blank*, supra, 39 Cal.3d at 318.) The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

CCP § 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action

is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 ["Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."].)

III.

DISCUSSION

Meet and Confer Requirement

Pursuant to Defendants' counsel's declaration, the parties met and conferred regarding the instant demurrer. (Spitz Decl., ¶¶ 3-4.) Counsel declares having several conversations with Plaintiff's counsel regarding the demurrer, with the most recent being May 20, 2026. (Spitz Decl., ¶ 4.) Accordingly, the parties satisfy the meet and confer requirement of CCP § 430.41(a).

Demurrer

Defendants demur to Plaintiff's SAC in its entirety on the grounds that Plaintiff fails to state facts sufficient to constitute a cause of action against Defendants. (Dem., p. 2.)

a. First Cause of Action – Breach of Contract

Defendants

argue the SAC fails to allege an enforceable contract because there is no acceptance pursuant to the underlying Residential Purchase Agreement ("Agreement"). (Dem., p. 2.) Defendant contends Paragraph 25A of the Agreement states acceptance requires the signed offer to be "fully executed, in writing, by the recipient Party and is Delivered to the offering Party." (Dem., p. 2; See also SAC, Exh. 1.) Defendant argues Plaintiff fails to allege delivery of a signed contract and thus no acceptance has occurred. (Dem., p.

2.) Additionally, Defendants argue Plaintiff

fails to allege performance or excuse for non-performance. (Dem., p. 2.) Finally, Defendants further argue the alleged agreement is unenforceable under the statute of frauds. (Dem., p. 3.)

In

opposition, Plaintiff argues the contract was fully executed and delivered when Plaintiff signed the Agreement and returned it to Defendants. (Opp., p.

4.) Plaintiff argues that Defendants

retained the Agreement that included the parties' signatures and this does not invalidate the delivery, relying on *Kreling v. Walsh*. (Opp., p. 4.) Plaintiff further contends Defendants ratified the Agreement via the existence of a purchase agreement, opening an escrow based on the agreement, and e-mail correspondence confirming the Agreement. (Opp., p. 6.) Finally,

Plaintiff argues Civil Code section 1624 subdivision (a)(3) does not require a contract be delivered to be enforceable under the statute of fraud. (Opp., p. 4.)

In

reply, Defendants again argue there is no acceptance, and contend Plaintiff failed to produce a signed agreement because one does not exist. (Rep., pp. 1-2.) Defendants further argue email

correspondence reflects that documents still needed to be signed on November 1, 2025, therefore confirming there was no signed agreement. (Rep., pp. 4-5)

Finally, Defendant contends the escrow instructions were never signed and are not evidence of a ratified binding contract. (Rep., p. 7.)

To state

a cause of action for breach of contract, Plaintiff must be able to

establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) If a breach of contract claim "is based on

alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307.)

Plaintiff

has attached a copy of the Agreement to the SAC as Exhibit 1 and alleges the following. Defendants provided Plaintiff

with the Agreement on October 25, 2025. (SAC, ¶¶ 14, 47.) Plaintiff accepted the Agreement and its terms, initialing and signing the Agreement. (SAC, ¶ 48.) Defendants also initialed and signed the Agreement. (SAC, ¶ 48.) Defendants retained the initialed and signed Agreement, and provided Plaintiff with a copy of the Agreement with the parties' initials only. (SAC, ¶ 49.)

Plaintiff

further alleges that Defendant breached the contract by making new and additional demands of Plaintiff, attempting to insert new terms and conditions, and delaying escrow. (SAC, ¶¶ 35, 50.) Defendants further breached the Agreement by refusing to close escrow and transfer title to Plaintiff. (SAC, ¶ 54.) Plaintiff has fully performed his duties and obligations under the Agreement, or his contractual performance was excused or prevented by Defendants' breach of contract. (SAC, ¶¶ 36, 53.) Finally, Plaintiff has suffered damages caused by Defendants' breach. (SAC, ¶ 55.)

The

Court finds Plaintiff has not sufficiently alleged facts to support a cause of action for breach of written contract, because Plaintiff has not sufficiently alleged acceptance of the Agreement.

First, Plaintiff

alleges both parties signed the Agreement, and that Defendants retained an initialed and signed copy of the Agreement, but that Plaintiff only has an initialed copy. The Agreement itself states, unambiguously, that acceptance occurs where the written offer, fully executed by the recipient party is delivered to the offering party. (SAC, Exh. 1, para. 25A.)

Here,

Plaintiff is the offering party, as signified by the language "[t]his is an offer from Smbat Torosian" on the first page of the Agreement. Defendants are therefore the recipient party. Thus, pursuant to the Agreement, acceptance occurs where the Agreement, signed by Defendants, is delivered to Plaintiff.

The

Agreement further states delivery occurs upon personal receipt, meaning a copy of the document is in the possession of the party. (SAC, Exh. 1, para. 25K.) The SAC fail to allege Plaintiff is in possession of a copy of the signed Agreement, and in fact only alleges

Plaintiff is in possession of an initialed copy of the Agreement. Therefore, the SAC fails to allege acceptance of the Agreement.

Plaintiff

argues Defendants' retained copy of the signed Agreement does not invalidate delivery, relying on *Kreling v. Walsh*.

The court in *Kreling v. Walsh* found

the physical transfer of a document is not indispensable to its validity and

that the "retention of an instrument by one of the parties after both have

signed it is not conclusive evidence of its non-delivery. It must be considered as delivered if the parties understand it has been executed and is in operation." (*Kreling v.*

Walsh (1947) 77 Cal.App.2d 821, 833 [finding it was sufficient to

constitute delivery where an instrument remained in the possession of appellant

where appellant's conduct and acts manifested an intent to proceed in

accordance with the terms of the written agreement].)

Here,

Plaintiff alleges Defendants confirmed in writing that they wish to move

forward with the sale of the Property to Plaintiff. (SAC, ¶ 32.) Plaintiff also alleges Defendants ratified

acceptance by opening escrow and delivering all signed documents. (SAC, ¶

25.) For purposes of demurrer, a

plaintiff's allegations must be accepted as true. (*Del E. Webb Corp. v.*

Structural Materials Co. (1981) 123 Cal.App.3d 593, 604.) Thus, Plaintiff alleges conduct that

manifests Defendants' intent to proceed with the Agreement. Under the *Kreling* holding, this is sufficient to constitute delivery.

Accordingly,

Defendants' demurrer to Plaintiff's first cause of action for breach of

contract is OVERRULED.

B. Second

and Third Causes of Action – Intentional Misrepresentation and Negligent

Misrepresentation

Defendants

argue the SAC fails to plead the second and third causes of action with the

requisite specificity. (Dem., p. 3.)

In

opposition, Plaintiff agrees the second and third cause of action needs to be

amended and requests he be given the opportunity to amend. (Opp., p. 9.) Plaintiff offers examples of additional facts to support the second and third causes of action, including Defendants' other potential buyers and Defendants' intent to use the agreement to illicit an offer at a higher purchase price from a third party. (Opp., p. 9.)

In reply, Defendants argue leave to amend should be denied or strictly conditioned, as Plaintiff has sufficient opportunities to plead these claims but has not plead the requisite specificity. (Rep., pp. 8-9.)

The Court is unpersuaded by Defendants' arguments regarding leave to amend. The SAC does not show on its face it is incapable of amendment. While Defendants argue the additional allegations in Plaintiff's opposition do not cure the defects of the SAC, there is nothing suggesting these are the only allegations Plaintiff has to add. There is a reasonable possibility the second and third causes of action can be remedied by amendment.

Accordingly, Defendants' demurrer is SUSTAINED WITH LEAVE TO AMEND as to the second and third causes of action.

IV. CONCLUSION

Based on the foregoing reasons, Defendants' demurrer to Plaintiff's first cause of action is OVERRULED.

Defendants' demurrer to the second and third cause of action in the SAC is SUSTAINED WITH LEAVE TO AMEND.

Moving party to give notice.

Dated July
21, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior
Court